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Judgment Sheet
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.

Judicial Department

ICA. No.213 of 2020

Shafqat Ali.

Versus

Chairman, Pakistan Electronic
Media Regulatory Authority, etc.

JUDGMENT

Date of hearing:	15.11.2021
Appellant by:	Syed Sajjad Haider Naqvi, Advocate.
Respondents by:	Mehr Qamar Hussain Sandal, DAG. Mr. Usman Bin Umar Ahmad Gillani, AGM PEMRA.

MUHAMMAD RAZA QURESHI, J: Through this Intra Court Appeal under section 3(2) of the Law Reforms Ordinance, 1972 the Appellant has challenged the legality and propriety of Order dated 08.10.2020 passed in Writ Petition No.13462/2020 by the learned Single Judge, whereby the Writ Petition filed by the Appellant was dismissed *in limine, interalia*, on the grounds; that the controversy raised by the Appellant was factual in nature; the alleged violation involved requisite expertise and same cannot be entertained in exercise of constitutional jurisdiction of this Court; the nature of controversy falls under the licensing domain of Respondent Authority; and that the Appellant had remedy under the applicable provisions of Pakistan Electronic Media Regulatory Authority Ordinance, 2002.

2. Inessential factual matrix apart the proceedings before the learned Single Judge as well as before us flow out of the licenses issued by the Respondent Authority under the

applicable provisions of Pakistan Electronic Media Regulatory Authority Ordinance, 2002 (hereinafter referred to as the “**PEMRA Ordinance**”) and rules framed thereunder to the Appellant as well as the Respondent No.6, and the Appellant questioned the jurisdictional encroachment in his licensed area by the Respondent No.6. Through his Writ Petition and now Intra Court Appeal the Appellant expects from this Court to revoke/cancel the license issued by the Authority to the Respondent No.6 and in the period integrum prayed for suspension thereof.

3. It is to be borne in mind that in its legal scheme the licenses and activities thereunder are governed by the provisions of PEMRA Ordinance and Pakistan Electronic Media Regulatory Authority Rules, 2009 (hereinafter referred to as the “**PEMRA Rules, 2009**”). The Authority constituted under the PEMRA Ordinance issues different categories of licenses under sections 18 and 19 of the PEMRA Ordinance. Pursuant to rule 19 of the PEMRA Rules, 2009 the Authority has exclusive right to grant permission through licenses and demarcate the area of operations of the licensees, therefore, for all intents and purposes the proceedings before this Court emanate from the License to Maintain and Operate Cable Television Network issued to the Appellant as well as the Respondent No.6.

4. Under the Scheme of PEMRA Ordinance and rules framed thereunder a comprehensive mechanism has been provided to resolve the controversies in relation to the issuance of licenses, their respective operational domains and dispute resolution mechanism through Complaint Cells. The nature of controversy agitated before us itself concede that the ambit and scope of the prayer actually involves

factual determination relating to domain of licensees requiring technical expertise, which this Court cannot resolve in exercise of its constitutional jurisdiction. Therefore, the learned Single Judge rightly held in paragraph No.4 of the Impugned Order that the remedy to the Appellant was available through a complaint as it is the Authority constituted under the provisions of PEMRA Ordinance who can determine the questions relating to the jurisdictional encroachment or excessive domains to be used by the Cable Operators, therefore, to the extent of these findings we maintain the same contained in the Impugned Order.

5. Additionally, we noticed that the nature of proceedings purportedly creating an actionable right in favour of the Appellant arise out of respective licenses issued to the Appellant as well as the Respondent No.6, which was granted to them by the Authority. In case of dispute on the issue the aggrieved person under rules 15 read with rule 24 of the PEMRA Cable Television (Operations) Regulations, 2002 had a remedy for redressal of his complaint and right to appeal under rule 28 of the Regulation *ibid* has been provided before the Authority, whereas under section 30-A of the PEMRA Ordinance right of appeal is also provided to the High Court against the decision of the Authority.

6. In such a legal framework for dispute resolution mechanism the Appellant was debarred from invoking the constitutional jurisdiction of this Court through bypassing the remedies provided under the applicable provisions of law. The constitutional jurisdiction grants an extraordinary relief and the same has to be exercised in aid of justice and not to interfere in jurisdictions of other statutory forums. Therefore, the learned Single Judge rightly held that any

comments/observations on merits would seriously prejudice the rights of the parties. Reliance in this regard is placed on Province of Punjab vs. Yasir Majeed Sheikh and others (2021 SCMR 624); Indus Trading and Contracting Company vs. Collector of Customs and others (2016 SCMR 842); Dr. Sher Afgan Khan Niazi vs. Ali S. Habib and others (2011 SCMR 1813).

7. There is another aspect in the case and that is whether the instant Intra Court Appeal is maintainable against the Order passed by the learned Single Judge? According to law laid down by the Hon'ble Supreme Court in case titled Mst. Karim Bibi and others vs. Hussain Bakhsh and another (PLD 1984 SC 344) a plain reading contained in the proviso to section 3(2) of the Law Reforms Ordinance, 1972 provides that no appeal will be available before a Bench of two or more Judges of a High Court from an order passed by a learned Single Judge in a constitutional jurisdiction if the petition arises out of proceedings in which the law applicable provided for at least one appeal.

8. The reference is clearly to the proceedings taken under any statute which prescribes a hierarchy of officers or authorities for carrying into effect the purposes of such statute including the enforcement of rights, if any, created thereunder. In such a case the law clearly envisages an original order against which the remedy of Appeal was provided by the statute.

9. Therefore, it is clear from the wording of the proviso that the requirement of the availability of an appeal in the law applicable is not in relation to the impugned order only in the Constitutional Petition. Apparently the meaning of the expression original order is the order with which the proceedings under the relevant statute commenced. A

proceeding would include every step taken towards a further progress of a cause in Court. The proceeding commences with the first step by which the machinery of law is put into motion.

10. Now juxtaposing the instant case with the position of law expounded in the preceding paragraphs the right to an actionable claim to the Appellant purportedly arose on 05.07.2017 when in the proceedings before the Respondent No.1 the subject matter License to Operate Cable Television Network under section 19 was issued to the Respondent No.6 under the provisions of PEMRA Ordinance. This was the first step when proceedings commenced by which the machinery of law i.e. PEMRA Ordinance, PEMRA Rules, 2009 and PEMRA Cable Television (Operations) Regulations, 2002 framed thereunder were put into motion. Incidentally in the instant case the same License was impugned by the Appellant by invoking constitutional jurisdiction of this Court seeking cancellation of the same.

11. The Appellant being a person aggrieved had a remedy of Appeal against the order for issuance of a License by the Authority under Regulation 28 of the Regulations, 2002 against the order for grant of License to the Respondent No.6 and the order of the Authority was further appealable under section 30-A of the PEMRA Ordinance before the High Court.

12. Therefore, the approval/order for issuance of License in proceedings under PEMRA Ordinance, Rules and Regulations framed thereunder was appealable under applicable provisions of law and the action/License impugned in Writ Petition was subject to appeal, therefore, in terms of section 3(2) of the Law Reforms Ordinance, 1972 this Intra Court Appeal is not competent.

13. In view of findings above, this Intra Court Appeal is **dismissed.**

(Ch. Muhammad Masood Jahangir) (Muhammad Raza Qureshi)
Judge Judge

Approved for reporting.

Judge

**Nadeem*

